2.2 The Dred Scott Decision

When things are going badly, we like to think that, at least, they can't get any worse. Until, of course, they do.

MAIN IDEA The Dred Scott case and John Brown's attack on Harpers Ferry further divided the North and the South over the issue of slavery.

THE REPUBLICAN PARTY

The Kansas-Nebraska Act caused the political differences in the United States to erupt. The repeal of the Missouri Compromise and the opening of new territories to slavery angered many northerners and deepened North-South divisions in the Whig and Democratic parties. Many northerners began to feel that none of the existing political parties reflected their growing concerns over slavery.

In reaction, antislavery leaders founded a new party in 1854 dedicated to fighting the expansion of slavery. The **Republican Party**, as it was named, found a following among former Whigs, Free-Soilers, Democrats, and Know-Nothings.

When the 1856 presidential election approached, the Republicans picked John C. Frémont, who was well-known for his explorations of the West, as their candidate. The Democrats chose **James Buchanan** to represent their party. Buchanan secured the presidency, but Frémont made a strong showing, winning 11 northern states. From the outset, the Republicans proved they were a force to be reckoned with.

DRED SCOTT AND JOHN BROWN

In March of 1857, two days after Buchanan took office, the U.S. Supreme Court issued a decision in *Dred Scott* v. *Sandford*, which had begun in 1846. The case involved a slave named **Dred Scott**. He had sued for his freedom on the grounds that his master had taken him to live in the free state of Illinois and in the Wisconsin Territory, where slavery was also prohibited.



Dred Scott was about 60 years old when this photo was taken during his Supreme Court case. His former master's sons purchased and freed Scott after the decision, but he died nine months later.

The Court ruled that Scott should remain a slave, and the **Dred Scott decision** sent shockwaves through the nation. In his explanation of the ruling, Chief Justice **Roger Taney** asserted that "members of the negro African race" were not actually citizens of the United States. Therefore, Scott did not have the right to bring a lawsuit to a federal court. Taney further declared that since slaves were the personal property of slaveholders, Congress had never had the authority to restrict slavery in the territories. This rendered the Missouri Compromise of 1820 unconstitutional. The strongly proslavery decision sparked outrage in the North and raised fears that southerners might try to extend slavery to the whole country. The chasm between North and South grew even wider.

Two years later, yet another dramatic event in the struggle over slavery took center stage. John Brown, the abolitionist responsible for the Pottawatomie Creek massacre in Kansas, led an attack on the town of **Harpers Ferry**, in the part of Virginia that later became West Virginia. He and his armed band of 21 men captured a federal arsenal and a rifle-manufacturing plant and took dozens of hostages. Brown hoped to trigger a

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AMERICAN PLACES

Harpers Ferry National Historical Park, West Virginia

Harpers Ferry is located where the Shenandoah and Potomac rivers meet, as shown in this aerial image taken by National Geographic photographer Ken Garrett. The scene of John Brown's 1859 raid on the armory, the town later became the site of one of the first integrated schools—attended by both former slaves and whites—in the nation.



slave revolt and create an "army of emancipation" that would free slaves across the South. He was wounded and captured, however, and ten of his men were killed. After a short trial, he was hanged just six weeks after the attack. To the dismay of southerners, many northerners refused to condemn Brown. Instead, they viewed him as a hero and a martyr, or a person willing to die for his or her beliefs, to the cause of abolition. The raid at Harpers Ferry increased southerners' fear of slave rebellions and further heightened the tension between the North and the South. As a result, slavery was about to bring the country to the breaking point.

HISTORICAL THINKING

1. **READING CHECK** Why did Dred Scott believe he should be freed from slavery?
2. **IDENTIFY MAIN IDEAS AND DETAILS** What political ideas led to the formation of the Republican Party?
3. **DISTINGUISH FACT FROM OPINION** Is Roger Taney's assertion that "members of the negro African race" were not actually citizens of the United States a fact or opinion? Explain your answer.

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